



SPONSOR: Rep. Wilson-Anton & Sen. Townsend
Reps. Griffith, Phillips, Romer

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 236

AN ACT TO AMEND TITLE 11 AND TITLE 29 OF THE DELAWARE CODE RELATING TO THE COUNTY AND MUNICIPAL POLICE/FIREFIGHTER PENSION PLAN AND THE COUNTY AND MUNICIPAL EMPLOYEES RETIREMENT PLAN.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend Chapter 88, Title 11 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 8801. Definitions.

As used in this chapter:

(3) “Credited service” shall mean, for any member:

d. Service with a police department not covered under paragraph (6) of this section by someone who is subsequently employed as a police officer by a county or municipality in ~~Delaware~~, Delaware which has affiliated with the Fund established by this chapter may receive credit for such previous service upon payment to the Fund, on or before the date of issuance of the individual’s first benefit check, of a single lump sum payment equal to the actuarial value of the pension benefits to be derived from such service credits compiled on the basis of actuarial assumption approved by the board and the individual’s attained age and final average compensation.

(5) “Employee” shall mean:

d. An individual initially hired prior to [the effective date of this Act] and employed on a full-time basis with duties as both a paid firefighter and a paid emergency medical technician in ~~a volunteer fire company~~ an entity which has affiliated with the Fund established by this ~~chapter~~, chapter; or

e. An individual initially hired on or after [the effective date of this Act] and employed on a full-time basis with duties as a paid firefighter or a paid emergency medical technician or both in an entity that has affiliated with the Fund established by this chapter.

§ 8805. Optional participation of ~~counties and municipalities~~, counties, municipalities, volunteer ambulance companies, and volunteer fire companies.

~~Any county or municipality~~ A county, municipality, volunteer ambulance company, or volunteer fire company in this State may elect to participate in the County and Municipal Police/Firefighter Pension Plan beginning July 1 of any year

on or after July 1, 1984. Application to participate shall be by resolution approved by the governing body of the ~~county or municipality joining entity~~ and shall be submitted to the Board in such form as the Board shall determine not later than 90 days prior to the date participation is to begin, except such time limit may be reduced by the Board. Any such application, upon approval by the Board, shall be irrevocable. Each participating ~~county and municipality entity~~ shall provide such information to the Board as it may require for the administration of this chapter.

§ 8806. ~~Powers and duties of the Board.~~ [Repealed.]

~~The Board shall have the power and duty to appoint an Executive Secretary who shall be responsible for determining the eligibility for retirement pension benefits under this chapter.~~

§ 8814. ~~Vesting rights; return to service.~~ Vested right to service pension.

§ 8815. Eligibility for disability pension.

(a) A member who suffers a partial or total disability resulting from an individual and specific act, the type of which would normally occur only while employed as a ~~police officer/firefighter~~, police officer, firefighter, paramedic, or emergency medical technician ~~shall be~~ is eligible for a duty-connected disability pension. If such act involves a traumatic event which directly causes an immediate cardiovascular condition which results in partial or total disability, the member ~~shall be~~ is eligible for a partial or total duty-connected disability pension.

§ 8842. Employer contributions.

The contribution of ~~the county or municipality~~ an entity affiliated with the Fund for each fiscal year shall be the percentage of covered payroll approved by the Board on the basis of the most recent actuarial valuation and shall equal:

Section 2. Amend Chapter 55, Title 29 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 5551. Definitions.

As used in this chapter:

(5) "Employee" shall mean:

d. A ~~person~~ person, other than a person with duties as an emergency medical technician, a paid firefighter, or both, initially hired on or after [the effective date of this Act], who is a paid employee of a volunteer fire company or a volunteer ambulance company in Delaware; or

(6) "Employer" shall mean a ~~county or county,~~ municipality, including a state governmental subdivisions, subdivision, including the Delaware State Housing Authority, a volunteer ambulance companies, and company, or a volunteer fire companies, company in Delaware Delaware, which has affiliated with the ~~Fund established by Chapter 55 of this title as provided in § 5555 of this title.~~ Fund.

§ 5555. Optional participation of ~~counties and municipalities.~~ counties, municipalities, volunteer fire companies,
and volunteer ambulance companies.

~~Any county or~~ A county, municipality, ~~including state governmental subdivisions,~~ subdivision, including the
Delaware State Housing Authority, a volunteer ambulance company, ~~and or~~ or volunteer fire ~~company,~~ company may elect to
participate in the ~~State Employees' Pension~~ County and Municipal Employees' Retirement Fund beginning July 1 of any
year on or after July 1, 1981. Application to participate shall be by resolution approved by the governing body of the ~~county~~
~~or municipality, including state governmental subdivisions and the Delaware State Housing Authority,~~ joining entity and
shall be submitted to the Board in such form as the Board shall determine, not later than 90 days prior to the date
participation is to begin, except such time limit may be reduced by the Board. Any such application, upon approval by the
Board, shall be irrevocable. Each participating ~~municipality, including state governmental subdivisions and the Delaware~~
~~State Housing Authority,~~ entity shall provide such information to the Board as it may require for the administration of this
chapter.

SYNOPSIS

This Act allows a paid emergency medical technician working for a participating employer to be eligible for the County Municipal Police/Firefighter Pension Plan. It also makes conforming changes to other sections of the Code.

In addition, this Act will exclude firefighters and EMTs hired after the effective date of this Act from participating in the County and Municipal Employees' Fund, in order to ensure the State's pension plans comply with federal tax and pension law. Going forward, employees who work as paid firefighters, EMTs, or both will be eligible only for the Police/Firefighter Pension Fund.

Technical corrections to existing statutory language are also made as follows: (i) to eliminate § 8806 of Title 11, which is duplicative of § 8308 of Title 29 and therefore unnecessary; (ii) to conform the title of § 8814 with its content; (iii) to correctly list the entities which may participate in each plan and the requirements for doing so; (iv) to correct cross-references that are incorrect in the current Code.